

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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JIMMY HU,

Index#

Petitioner,

AFFIRMATION

-against-

HYUNDAI MOTOR AMERICA,

Defendants.

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I, JIMMY HU, am the named petitioner in the above captioned action and am submitting this affirmation in support of the within motion to vacate.

1. On or about May 23, 2024, I entered a lease agreement with an authorized dealership of defendant, for a new 2024 Hyundai Ioniq 5, Vin KM8KNDDF9RU253237 (“the vehicle”), in the State of New York
2. A true and accurate copy of the lease agreement is attached as **Exhibit “C”** and was provided to me by defendant’s authorized dealership.
3. The vehicle came with a basic 5 year / 60,000-mile warranty from defendant.
4. On or around February 12, 2025, I started experiencing severe electrical problems with the vehicle, which had difficulty holding a charge. A problem that became worse with time.
5. On or around April 3, 2025, I brought the vehicle to Paramus Hyundai, where they verified the problem, and held the vehicle for repairs until on or around August 5, 2025, replacing the EV battery.
6. This repair was for one-hundred and twenty-five (125) days.
7. On August 5, 2025, my vehicle only had 8,151 miles on it, and was less than 2 years old, meaning this repair was well within the New York State Lemon Law Presumption period.
8. Since then, I’ve continued having electrical problems with the vehicle, having to bring it in multiple more times, with the car being down about two-hundred (200) days including days it was unusable, but not in the repair facility.
9. All repair orders are attached as **Exhibit “D”**.
10. Hyundai offered a repurchase, but would not fairly negotiate the terms, and wanted me to sign a release I did not think was appropriate.

11. On May 4, 2026, I completed and filed an application with the New York Attorney General's Office for a New Car Lemon Law Arbitration, requesting a repurchase and full refund of what I paid for the vehicle. That application is attached as **Exhibit "A"**.
12. I provided all documents to the Arbitrator prior to the hearing, including the repair orders, lease agreement, and all other documents associated with my claim. All evidence provided to the arbitrator is attached as **Exhibit "E"**.
13. On June 9, 2026, a virtual hearing was held before Arbitrator Maneesha Sharma. An attorney for Hyundai was present.
14. Hyundai did not bring or call any fact witnesses. No mechanics or technicians from Hyundai appeared.
15. At the hearing, Hyundai did not present any evidence or provide any documents.
16. During the arbitration I explained the problems with the vehicle to the Arbitrator, including the 125-day repair and the excessive electrical issues.
17. I explained that the problems with the vehicle were substantial, affected the use and safety of the vehicle, and substantially impaired the value of the vehicle to me, the consumer.
18. Hyundai did not prove any affirmative defenses.
19. Despite this, the Arbitrator Sharma issued a decision dated June 11, 2026 finding for Hyundai, riddled with factual inaccuracies, including stating that the vehicle was not out of service for more than 30 days, despite a repair order showing 125 days out of service.
20. Therefore, I am asking this Honorable Court to find that the decision from the Arbitrator was irrational, arbitrary and capricious, as well as unsupported by the record.

I affirm this \_\_\_\_ day of \_\_\_\_\_, 2026, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

*Jimmy Hu*

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JIMMY HU